How Upahar Giving works with Shree Shiva Shaikshanika Seva Ashrama

This note explains, in plain language, what Upahar Giving is, what it does for the ashrama, and why it is set up the way it is. It is written for the school's trustees and staff, for the teachers, and for anyone thinking of giving or helping. The signed agreements are what bind us; this is the explanation behind them.

IN ONE PARAGRAPH

Upahar Giving is a small nonprofit in New Jersey, run by volunteers, formed to support the children at the ashrama near Tumakuru. It works alongside the school, but it does not run the school or fund it. It raises money in the United States and in India, runs its own teaching programme at the school, engages and pays the programme's teachers directly, and brings outside knowledge and connections where they are useful. It is a separate organisation with its own board, and over time it may take on other projects, but the ashrama is the reason it exists.

WHY A SEPARATE ORGANISATION

Indian law sets clear rules for money that comes from abroad to Indian charities. A school or ashrama may receive foreign funds only once it holds the registration the Foreign Contribution (Regulation) Act requires. The ashrama does not hold that registration today.

We have no interest in working around those rules. We want to be useful to the school in a way that is lawful and would look right to any regulator, auditor or donor who examined it. So, instead of sending money to the school, Upahar Giving runs its own programme at the school. It engages teachers directly as independent contractors, pays them directly from its own account, and buys and serves food directly to the children. No money, food or equipment is handed to the school itself, and the school is never asked to receive foreign funds it is not registered to receive.

Fees paid to an individual for their own services are not a "foreign contribution" under Indian law; a donation to an institution is. The whole structure rests on keeping that distinction clean.

HOW THE TEACHING PROGRAMME WORKS

The programme belongs to Upahar Giving. Upahar sets its goals, hours and expected outcomes, engages the teachers for it as independent contractors, supervises the work through its own coordinator, and pays for it. That is what makes the teachers' fees payment for services to Upahar rather than support for the

school, so it is not a formality. Within that, the teachers keep real freedom in the classroom, and the school, which knows these children best, is heard at every step. We want to add knowledge and resources to that relationship, not replace it.

What Upahar Giving does

Defines the programme: its goals, hours and expected outcomes. Signs a written agreement with each teacher. Supervises the work through an Upahar coordinator, who reports to Upahar's board and confirms each month's work before payment. Pays each teacher's monthly fee directly into their own bank account. Decides who is engaged, reassigned or let go. Keeps the records, reports to its board and donors, and carries the legal and financial responsibility for the programme.

What the school does

Hosts the programme and remains the primary liaison on the ground. May recommend teachers it trusts. Is told in advance before anyone is engaged, changed or let go, and its views are heard, though the decision is Upahar's. Shares its observations, which become part of every evaluation. Keeps full authority over its own premises and the children in its care. Does not direct or supervise the programme's teachers in their work for Upahar.

What the teachers keep

Freedom in how they teach. A clear monthly fee, paid on time, with a simple invoice. The right to respond to any feedback before a decision is made about them. The right to work for the school directly if Upahar ever steps back.

What the school is asked about

Priorities, subjects, timetable, which children take part and what they eat are discussed with the school at a planning meeting each year. Upahar's board makes the final decision and tells the school what was adopted and why.

MONEY

Upahar Giving takes no commission and charges no fee. Its trustees are unpaid volunteers. Everything it raises is used for its programmes and the modest costs of running a nonprofit properly. Gifts support Upahar's programmes, and its board decides how funds are used.

Because Upahar Giving holds and manages the funds itself rather than passing them on, it can plan how they are used over time. That means teachers can be paid reliably through months when giving is slow, and it means the funds can be managed so that whatever they earn while they wait goes back into the programme.

From the United States	Gifts to Upahar Giving. Our application for 501(c)(3) recognition is pending; once granted, it applies from our formation date and gifts become tax-deductible for US donors.
From India	Donors in India can also give to Upahar Giving. We will provide simple instructions for doing so lawfully.

To the teachers	Paid directly, under a signed agreement, into the teacher's own account, after each completed month of work, once Upahar's coordinator has confirmed it. Never in advance, never in cash, never through the school or any third party.
To the school	Nothing, for now. This is deliberate and is what keeps the school clear of foreign-funding rules it is not registered under.

LOOKING AHEAD

The arrangement runs month to month. Upahar Giving must give the school at least thirty days' notice if it ever intends to stop, and if it does, the school may choose to continue the programme itself, with our curriculum, materials and introductions to the teachers and suppliers.

We would also like to help the school obtain its own FCRA registration in time. The school's auditor has suggested letting the programme run for about six months first, with every payment through online banking and nothing in cash, and then applying; we agree. Our part would be guidance, connections with people who have done it, and, where Indian law permits, help with the costs involved. Once the school holds that registration, far more becomes possible, and the two organisations can decide together what should change.

WHAT WE ASK OF THE SCHOOL

Space and time in the school day for the programme, at no charge. A contact person for practical matters on site. The details we need to engage each teacher properly: name, identity documents, qualifications, subjects, and a bank account in the teacher's own name. Honest observations about how the teachers and the programme are doing. Cooperation on child safeguarding, attendance records, our coordinator's visits and the occasional visit from our board or a reviewer. And the candour to tell us when something is not working.

WHO WE ARE

Upahar Giving Inc. is a New Jersey nonprofit corporation formed in September 2026, with a board of three trustees and no paid staff. "Upahar" means "gift" in Hindi. Our website is upahargiving.org and we can be reached at upahargiving@gmail.com.

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This brief is a plain-language explanation and is not itself an agreement. The Memorandum of Understanding between Upahar Giving Inc. and the ashrama, and the service agreements with individual teachers, set out the binding terms. Upahar Giving Inc. has applied for recognition as a 501(c)(3) public charity; the application is pending. © 2026 Upahar Giving